

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

C.R.No.76628/2022

Imran Ahmad Khan Niazi **VS.** Mian Muhammad Shahbaz Sharif

S. No. of order/ proceedings	Date of order/ Proceedings	Order with signatures of Judge, and that of parties or counsel, where necessary
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07.12.2022	Syed Ali Zafar, Mian Muhammad Kashif and Imran Iqbal, Advocates.
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Through this single order, I intend to decide the titled Civil Revision alongwith Civil Revision No.76624/2022 as both these Petitions have arisen out of the proceedings of a suit filed by the respondent.

2. Brief facts of these cases are that the respondent/plaintiff filed a suit for recovery of Rs.10,000,000,000/- as damages for defamation under Sections 4 & 9 of the Defamation Ordinance, 2002 against the petitioner/defendant. The petitioner filed contesting written statement. On 03.02.2022 the respondent/plaintiff filed interrogatories, the copy whereof was handed over to the petitioner’s counsel for filing answer to the same. The petitioner/defendant instead of filing answer to the interrogatories, filed objections on the interrogatories on 09.05.2022. The learned trial Court overruled the said objections on 20.10.2022 being filed beyond the stipulated period. The

petitioner has impugned the order dated 20.10.2022 through Civil Revision No.76624/2022.

Besides above, the learned trial Court while overruling the objections of the petitioner on 20.10.2022 directed the petitioner/defendant to file answers to the interrogatories of respondent/plaintiff. The petitioner/defendant did not file the answers to the interrogatories. Resultantly, his right of defence was struck out by the learned trial Court vide order dated 24.11.2022, impugned in the titled Civil Revision No.76628/2022.

3. I have heard the arguments of learned counsels for the petitioner and have gone through the record with their able assistance.

4. In the suit for defamation the respondent/plaintiff filed interrogatories on 03.02.2022 under Order XI Rule 2 C.P.C. which provision is reproduced as under:

“2. Particular interrogatories to be submitted. On an application for leave to deliver interrogatories, the particular interrogatories proposed to be delivered shall be submitted to the Court. In deciding upon such application, the Court shall take into account any offer, which may be made by the party sought to be interrogated to deliver particulars, or to make admissions, or to produce documents relating to the matters in question, or any of them, and leave shall be given as to such only of the interrogatories submitted as the Court shall consider necessary either for disposing fairly of the suit or for saving costs.

Aforesaid Rule was substituted by the Lahore High Court, Lahore vide notification No.237/Legis/XI-Y-26 dated 15.08.2018 which notification came into force w.e.f. 01.11.2020 vide Notification No.259/Legis/XI-Y-26 dated 23.10.2020, as under:-

2. Communication of interrogatories.--On receipt of the interrogatories under rule 1, the Court shall deliver the interrogatories to the concerned person for

submitting the answer within such time as the Court may specify.”

(emphasis supplied)

The copy of the said interrogatories was delivered to the petitioner/defendant’s counsel on 03.02.2022. On 07.02.2022, the respondent/plaintiff filed an application seeking amendment/recalling of questions mentioned at Sr. No.33 to 38 of the interrogatories. The said application was allowed on 11.02.2022 with the consent of the petitioner/defendant. The respondent/plaintiff filed amended interrogatories on 08.03.2022 and the copy whereof was provided to the petitioner’s counsel on the same day to submit answers thereto and the case was fixed for 16.03.2022. Thereafter, on the request of the learned counsel for the petitioner the case was adjourned to 09.04.2022, 20.04.2022 and 26.04.2022 to file answer to the interrogatories but on 09.05.2022 instead of filing answer, the petitioner filed objections on the interrogatories under Order XI Rule 6 C.P.C upon which the case was adjourned to 14.05.2022 for filing reply of the objections by the respondent/plaintiff. For reference, aforesaid provision is reproduced as under:

“6. Objection to interrogatories by answer.—Any objection to answering any interrogatory on the ground that it is scandalous or irrelevant or not exhibited *bona fide* for the purpose of the suit, or that the matters inquired into are not sufficiently material at that stage, or on any other ground, may be taken in the affidavit in answer.”

On 14.05.2022, the respondent/plaintiff filed reply to the objections and the case was adjourned to 21.05.2022 for arguments on objections on the

interrogatories. On 21.05.2022, on the request of petitioner's counsel, the case was adjourned to 30.05.2022. On fixed date, the arguments of the respondent's counsel were made but adjournment was sought on behalf of the petitioner to advance arguments upon which the case was adjourned to 08.06.2022. On the said date, the case was again adjourned on the request of the petitioner's counsel for 23.06.2022. The learned counsel for the petitioner advanced arguments on objections before the learned trial Court on 23.06.2022 and the case was fixed for further arguments of respondent side for 05.07.2022. On 05.07.2022, written arguments were submitted by the learned counsel for the respondent upon which the petitioner's learned counsel sought adjournment to answer the same and the case was adjourned to 27.07.2022. On 27.07.2022, on the request of petitioner's counsel, the case was adjourned to 08.09.2022. On 08.09.2022, the learned counsel for the petitioner submitted written arguments whereupon the respondent's counsel sought adjournment to advance further arguments and the case was then fixed for 22.09.2022. On 22.09.2022, on the request of respondent's counsel, the case was fixed for 05.10.2022. On 05.10.2022, the respondent's counsel summed up his arguments and on the request of petitioner's counsel the case was adjourned to 19.10.2022. Finally, on 19.10.2022 the arguments of both the parties were heard and on 20.10.2022 through the impugned order the objections of the petitioner on the interrogatories

were overruled being filed after stipulated period prescribed under Rule 7 of Order XI C.P.C. which envisages that an application containing objections regarding interrogatories is to be filed within seven days after service of the interrogatories. For reference, aforesaid provision is as under:

“7. Setting aside and striking out interrogatories.—Any interrogatories may be set aside on the ground that they have been exhibited unreasonably or vexatiously, or struck out on the ground that they are prolix, oppressive, unnecessary or scandalous; and any application for this purpose may be made within seven days after service of the interrogatories.”

(emphasis supplied)

The mandate of the aforesaid provision is clear that if a party wishes to file objections on the interrogatories, it has to file application for this purpose within seven days after service of the interrogatories. In this case, the amended interrogatories were filed on 08.03.2022 and served upon the petitioner on the same day whereas the petitioner filed objections on the interrogatories on 09.05.2022 i.e. after lapse of two months without furnishing any convincing justification for such inordinate delay. When law prescribes anything to be done in a particular manner, it is to be done as mandated by law. In this regard, reliance may respectfully be placed on the case titled as Government of the Punjab, Food Department through Secretary Food & Another Vs. Messrs United Sugar Mills Limited & Another (2008 SCMR 1148).

5. As the petitioner/defendant failed to file objections on the interrogatories within the period stipulated in Order XI Rule 7 C.P.C, as such the learned trial Court rightly overruled the objections filed by him through order dated 20.10.2022 [impugned in Civil Revision No.76624/2022].

6. Now adverting to the order dated 24.11.2022 passed by the learned trial court [impugned in the titled Civil Revision No.76628/2022] whereby the right of defence of the petitioner/defendant was struck out.

7. The respondent/plaintiff filed interrogatories on 03.02.2022 followed by amended interrogatories on 08.03.2022. The petitioner/defendant instead of filing the answer, filed objections on interrogatories on 09.05.2022 which objections were finally overruled on 20.10.2022 by the learned trial Court on account of being filed after the lapse of statutory period provided under Order XI Rule 7 C.P.C. and the petitioner was directed to file answer to the interrogatories in terms of Order XI Rule 8 C.P.C, which provision is reproduced as under:

“8. Affidavit in answer, filing.—Interrogatories shall be answered by affidavit to be filed within ten days, or within such other time as the Court may allow.

Aforesaid Rule was substituted by the Lahore High Court, Lahore vide notification No.237/Legis/XI-Y-26 dated 15.08.2018 which notification came into force w.e.f. 01.11.2020 vide Notification No.259/Legis/XI-Y-26 dated 23.10.2020, as under:-

8. Affidavit.-The interrogatories shall be answered by an affidavit to be filed within the time specified by the Court.”

(emphasis supplied)

Aforesaid provision is very much clear that the petitioner/defendant was required to file the answer to the interrogatories within the time specified by the Court. As per record, the learned trial court while overruling the objections on 20.10.2022, directed the petitioner to file answers to the interrogatories on 26.10.2022. On the said date, on the request of learned counsel for the petitioner/defendant, the case was adjourned to 08.11.2022 but on the said date, the learned counsel for the petitioner again made written request for adjournment which was accepted and the case was adjourned to 17.11.2022. On 17.11.2022 the counsel for the petitioner/defendant as usual sought adjournment to file answer and the case was adjourned to 24.11.2022 with the warning that in case of non-submission of the answer, the right of the petitioner/ defendant shall be struck out. For reference, the order dated 17.11.2022 passed by the learned trial Court is reproduced as under:

“Learned counsel for the defendant has requested for one more adjournment to submit replied of the concerned interrogatories of the plaintiff’s side due to his non contact with the defendant. Learned counsel for the plaintiff has vehemently opposed the said request for adjournment with the submission that costs be imposed upon the defendant in case of adjournment. This Court does not deem it proper to impose costs upon the defendant regarding adjournment sought by learned counsel for the defendant today. At request of learned counsel for the defendant one more adjournment is hereby granted to submit replies by the defendant regarding concerned interrogatories of the plaintiff’s side. File be put up on 24.11.2022 for submission of requisite replies by the defendant’s side regarding concerned interrogatories of the plaintiff in the form of one more opportunity. It is hereby clarified that in case of non submission of requisite replies by the defendant’s side regarding concerned interrogatories of the

plaintiff's side on the next date, the right of defence of the defendant shall be struck out."

(emphasis supplied)

8. The petitioner/defendant was explicitly directed to file answer to the interrogatories. The petitioner/ defendant was duty bound to file answer as mandated by Order XI Rules 8 & 9 C.P.C but despite availing sufficient opportunities, the petitioner remained fail to file answer to the interrogatories. On 17.11.2022 the learned trial Court specifically directed the petitioner/defendant to file reply and gave last opportunity to the petitioner/ defendant to file reply but even then the petitioner/defendant failed to submit the same.

9. From plain reading of Rule 8 & 9 of Order XI CPC, it evinces that if a party does not answer the interrogatories despite being aware of the Court's order, the adjudicating Court has the jurisdiction to strike out the right of defence of such defaulting party for non-compliance of provision of law as well as order of the Court under Order XI Rule 21 C.P.C which dictates that in case of non-compliance of order to answer interrogatories by a defendant, his right of the defence would be struck out. For reference, said provision is reproduced as under:

"21. Non-compliance with order for discovery.—
Where any party fails to comply with any order to answer interrogatories, or for discovery or inspection of documents, he shall, if a plaintiff, be liable to have his suit dismissed for want of prosecution, and, if a defendant, to have his defence, if any, struck out, and to be placed in the same position as if he had not defended, and the party interrogating or seeking

discovery or inspection may apply to the Court for an order to that effect, and an order may be made accordingly.”

(emphasis supplied)

The provisions of the rules 8 and 9 of Order XI CPC are mandatory in nature as penal action is provided in rule 21 of Order XI CPC which speak about the striking out of the defence. Furthermore, the intent of the legislature is evident from the plain reading of Order XI Rule 21 C.P.C. is to prevent substantial or serious prejudice that may be caused to the opposite party due to the negligence, or inordinate/inexcusable delay of the defaulting party. The purpose of Rule 21 of Order XI C.P.C. is to compel the parties to the lis to comply with the order of the Court, as such the non-compliance of the orders dated 03.02.2022, 08.03.2022, 20.10.2022, 26.10.2022, 08.11.2022 and finally order dated 17.11.2022 with last warning establishes the willful default on the part of the petitioner in terms of disregard to the explicit direction of the learned trial Court to file answers to the interrogatories.

10. Furthermore, the Court has the jurisdiction to regulate the trial proceedings of a case in order to eliminate the abuse of process of law by adhering to all the fairness in the trial proceeding and it should always endeavor to conclude the trial within reasonable span of time. As the petitioner was granted ample opportunities but he failed to file the answers and any grant of further opportunity would be an express abuse of the process of law and same is not permissible. As the Court is empowered to non-suit a plaintiff for any default on its part, then

there is no reason to oblige the defendant with numerous opportunities of adjournments on one pretext or the other without any justifiable reason causing unreasonable delay in deciding the lis. The Courts have inherent powers to curb the unnecessary delay for the ends of justice or to prevent abuse of process of law. Reliance is placed on a case cited as Haroon Ahmed and others Vs. Secretary Communication and Works Department and another (2015 MLD 1220).

For what has been discussed above, the learned trial Court, while invoking provision under Order XI Rule 21 C.P.C. has rightly struck out the right of defence of the petitioner/defendant through the order dated 24.11.2022 [impugned in Civil Revision No.76628/2022].

11. Learned counsel for the petitioner has not pointed out any illegality or material irregularity in the impugned orders dated 20.10.2022 and 24.11.2022 passed by the learned trial Court and has also not identified any jurisdictional defect calling for interference by this Court.

12. Resultantly, both these civil revisions are hereby **dismissed** in *limine*. No order as to costs.

(Ch. Muhammad Iqbal)
Judge

Approved for reporting.

Judge